



CR-7538-2024 (O&M)

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IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

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CR-7538-2024 (O&M)

Date of Decision: 07.01.2025

BALDEV SINGH AND ANOTHER

... Petitioners

V/S

PUNJAB MANDI BOARD AND OTHERS

.... Respondents

CORAM: HON'BLE MR. JUSTICE SUVIR SEHGAL

Present: Mr. Amandeep Sharma, Advocate for the petitioners.

SUVIR SEHGAL, J. (ORAL)

1. This revision petition has been filed under Article 227 of the Constitution of India *inter alia* for setting aside order dated 21.05.2024, Annexure P-7, passed by the learned Civil Judge (Jr. Division), Ajnala, whereby the application filed by the petitioners/plaintiffs under Order 39 Rule 1 and 2 CPC, has been dismissed.
2. Counsel for the petitioners has been heard.
3. Petitioners/plaintiffs had filed a civil suit for permanent injunction restraining the respondents/defendants, their employees etc. from encroaching upon the suit land without acquisition and without following the due process of law. Along with the suit, an application, Annexure P-4, was filed under Order 39 Rule 1 and 2 CPC, which after



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notice to the respondents, has been dismissed vide order dated 21.05.2024, Annexure P-7, passed by the trial Court. Petitioners have filed an appeal, Annexure P-8, before the learned District Judge, Amritsar, which is stated to be pending. Instead of pursuing the appeal, petitioners have approached this Court by way of instant revision petition seeking stay of order, Annexure P-7. A perusal of the interim orders passed by the District Judge, Amritsar show that the appeal had come up for hearing on 29.05.2024. While issuing notice to the respondents-defendants, learned Additional District Judge, passed the following order:-

“Appeal received by entrustment. Heard. There are arguable points involved in the appeal. Same is admitted subject to just exceptions. It be registered. Alongwith the application there is an application for interim stay. Heard. I do not deem it appropriate to pass any ex parte order on the application as such notice of the appeal as well as the application be issued to the respondents through ordinary process and through registered covers to be furnished within three days for 09.07.2024.”

4. A perusal of the above reproduced order shows that the Appellate Court declined to pass any ex-parte order on the appeal. Subsequent orders passed by the learned Additional District Judge, Amritsar, show that the service of the respondents is incomplete and despite being given repeated opportunities, petitioners have not supplied



the registered post covers for the service of the respondents. These facts have however not been brought to the notice of this Court and the petitioners have concealed these material developments. As the petitioners have approached this Court with tainted hands and have suppressed crucial facts, prayer made in the petition cannot be accepted.

5. Petition is dismissed with costs which are assessed at Rs.10,000/- to be deposited with Sahayata Charitable Welfare Society, Sector 15-B, Chandigarh (Account No : 911010027828405. IFSC : UTIB0001518.).

6. A copy of the order be sent to the Appellate Court for ensuring that the costs are duly deposited.

07.01.2025
pooja saini

(SUVIR SEHGAL)
JUDGE

Whether Speaking/Reasoned	Yes/No
Whether Reportable	Yes/No